Notification Waiver Determination

Crestlink – Aztec Resources

Acquisition	Crestlink Koolan Pty Ltd (**Crestlink Koolan**), applied for a notification waiver in respect of its proposed acquisition of 100% of the shares in MGX Resources Limited's wholly owned subsidiary, Aztec Resources Limited (**Aztec Resources**), as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	16 October 2026

Parties to the Acquisition	The acquirer, Crestlink Koolan, is part of the Crestlink Group. The Crestlink Group is an Australian infrastructure and logistics provider with a focus on the Kimberley region and northern Australia. The Crestlink Group is backed by US infrastructure investor Cerberus Capital Management LP. The target, Aztec Resources, holds and operates the Koolan Island iron ore mining assets, which mines, processes and ships iron ore fines. Koolan Island has approached the natural end of its iron ore production and shipping operations, which were completed in July 2026. As part of the Acquisition, Crestlink Koolan will assume responsibility for the remaining mine rehabilitation obligations at Koolan Island. The Acquisition is part of Crestlink Koolan's plan to establish an air and marine logistics hub in the Kimberley region, including on Koolan Island.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is no horizontal overlap between the Crestlink Group (and its connected entities) and Aztec Resources in the supply of air and marine infrastructure and logistics services in Australia

	b. there are several alternative suppliers of air and marine infrastructure and logistics servicing the Kimberley region of Western Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Woodward pursuant to a delegation under section 25(1) of the Act